

attorney mistake, inadvertence, or excusable neglect. Plaintiff's failure to appear at the hearing did not affect the Court's evaluation of the merits of the Motion. The Court declines to exercise its discretion to provide relief under 473(b). The Motion is **DENIED**. No proposed order has been lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

NATIONAL COLLEGIATE STUDENT LOAN TRUST 2007-3 VS. SHEPHERD

Case Number: 24CVG-00826

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff and Counsel, on March 7, 2025, for failure to timely serve as required by California Rule of Court 3.110, and for failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to serve and file the MSC statement, the Court will impose sanctions in the amount of \$250 against Plaintiff and Counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve in violation of CRC 3.110 and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m. in Department 64**. The clerk is directed to issue an Order to Show Cause Re: Dismissal consistent with this ruling. The May 13, 2025 trial date is **VACATED**.

PEREZ VS. MAXIMUS TREE WORKS LLC, ET AL.

Case Number: 24CV-0205260

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on March 7, 2025, to Plaintiff and Counsel for failure to timely seek entry of default/default judgment as required by California Rule of Court 3.110 and failure to timely file a Mandatory Settlement Conference Statement as required by California Rule of Court 3.1380. Plaintiff has submitted a Declaration in response to the OSC which adequately addresses these failures. The OSC is **DISHCHARGED**. No sanctions will be imposed.

Upon review of the file, the Court notes that its August 27, 2024 Order authorizing service of process on the California Secretary of State, imposes an additional condition that has not been met. Plaintiff must file a proof of service (of summons, complaint, and the Court's August 27, 2024 Order) by mail at the addresses of attempted service set forth in the application on file. There is no proof of service on file for Defendant Saul Ruiz. The Court also notes that a First Amended Complaint was filed April 15, 2025. This matter is not at issue. The trial set for May 13, 2025 is **VACATED**. This matter is set for review regarding status of service on **Monday, June 2, 2025 at 9:00 a.m. in Department 64**. No appearance is necessary on today's calendar.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Dallas Segall, in pro per, on February 4, 2025, for failure to appear on January 21, 2025, as ordered on November 25, 2024. No written response to the Order to Show Cause was filed. With no sufficient excuse for the failure to appear, the Court will impose sanctions in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to appear and failure to timely prosecute. It appears that Plaintiff has abandoned this matter. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, June 2, 2025, at 8:30 a.m.**